DECLARATION OF VYTENIS BABRAUSKAS, Ph.D.

Preface

Regarding the matter of:

- *Action*: Freedom of Information Act (FOIA) request no. 2025-00547 (c. March 18, 2025)
- *Requester*: Nathaniel Heatwole, Ph.D. (San Leandro, California)
- *Agency*: Bureau of Alcohol, Tobacco, Firearms, and Explosives ("ATF")
- *Event*: Station Nightclub fire (W. Warwick, Rhode Island, 2003)
- *Records*: (1) Pickett DAT audio; and (2) WPRI video of the fire

I, Vytenis Babrauskas, Ph.D., do hereby declare, subject to the penalties of perjury, that the following statements are true and correct, to the best of my knowledge and belief. I have personal knowledge as to all of the facts and matters set forth herein, and I am prepared to testify as to them if called upon to do so.

My Background

I am a recognized expert in the analysis and impacts of heat release from fires, fire investigation procedures, fire safety, and fire protection engineering. I also have extensive experience with building codes, fire codes, and fire standards, in their development and evaluation, and working with and on bodies that formulate and promulgate them. A true and correct copy of my professional curriculum vitae is attached (dated August 2, 2025).

I have a Ph.D. from the University of California, Berkeley, in Fire Protection Engineering, an M.S. in Structural Engineering from the University of California, Berkeley, and a Bachelors degree from Swarthmore College in Physics. From 1977-1993, I worked at the U.S. National Institute of Standards and Technology ("NIST"), including on programs and research related to materials flammability, fire toxicity, test method development, upholstered furniture flammability, building code fire safety requirements, and fire resistance. Since 1993, I have been the President and Founder of Fire Science and Technology, Inc., an organization devoted to fire safety research and providing fire safety consultations.

My Assessment

I have reviewed the document entitled "PUBLIC INTERESTS SUMMARY" (dated March 18, 2025), written by Dr. Heatwole and submitted with his FOIA request. It is my professional opinion that Dr. Heatwole has identified therein several significant public interests supporting the complete release of both of these records, including:

1. To assist with public oversight and public accountability regarding this fire event, ATF's role in it, and the ATF investigation, and to contribute to the public's understanding of this disaster event, its root causes, and its impacts.

2. To encourage the development of additional fire safety recommendations, policies, and preventative measures by ATF and other relevant federal agencies, such as NIST.

3. To encourage further evaluation of this nationally significant fire event, to improve understanding of survivability in fire environments and emergency egress behavior, by facilitating additional professional analysis by the broader research community.

In particular, I fully concur with the basis that Dr. Heatwole presents in the sections entitled "Improved understanding of survivability in fire environments" and "Improved understanding of human behavior in fire and emergency egress" in identifying significant public interests and fire safety value in encouraging further analysis of these records. These views are informed both by my experience as a fire safety researcher and professional fire investigation consultant, and also by my many years of Federal service at NIST.

For much of my professional fire safety career, I have been involved in the process of improving building codes, fire codes, and fire standards. I believe that the fullest possible understanding of the Station Nightclub fire disaster has the potential for resulting in improvements to U.S. building codes, fire codes, or fire standards. The release of these records, and the analyses and research agenda proposed by Dr. Heatwole, very much have the potential to yield such knowledge and safety improvements.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on February 20, 2026, in Cornville, Arizona.

/s/ Vytenis Babrauskas, Ph.D.